

FEDERAL MARITIME COMMISSION

DOCKET NO: 2022-15

PRO TRANSPORT CHARLESTON, INC.

Petitioner,

vs.

ALLROUND MIDWEST FORWARDING, INC.,

Respondent.

AGREEMENT IN SUPPORT OF DISMISSAL OF PETITIONER'S COMPLAINT

WHEREFORE, Petitioner, PRO TRANSPORT CHARLESTON, INC. (PTC) filed a Complaint against Respondent, ALLROUND MIDWEST FORWARDING, INC. (AMF) with the Federal Maritime Commission (FMC);

WHEREFORE, PTC, a motor carrier licensed by the Federal Motor Carrier Safety Administration (FMCSA) provided transportation services to AMF, a customs broker and freight forwarder licensed by the FMC;

WHEREFORE, a dispute arose between PTC and AMF regarding payment for the aforementioned transportation services;

WHEREFORE, AMF is required by the FMC, when acting as an Ocean Transport Intermediary, freight forwarder or NVOCC, to have current surety bond(s) on file with the FMC;

WHEREFORE, PTC requested AMF to provide information about surety bond(s) as an avenue for possible payment of the disputed payment for transportation services;

WHEREFORE, PTC had a good faith basis for concluding that AMF did not have current surety bond(s) and did not file the Complaint with FMC with malice or in bad-faith;

WHEREFORE, the thrust of PTC's Complaint against AMF was the alleged failure of AMF to have a current surety bond(s) on file with the FMC;

WHEREFORE, AMF, through counsel, provided PTC with documentation that AMF currently holds surety bonds as required by the FMC, as reflected by Appendix 1 hereto;

WHEREFORE, having been provided with documentation that AMF currently holds surety bonds as required by the FMC, PTC and AMF have agreed to a dismissal of the Complaint filed with the FMC, and for both parties to bear their own fees and costs and to otherwise go hence without delay;

WHEREFORE, PTC and AMF request that the FMC allow the Complaint to be dismissed in accordance with this Agreement.

DATED this 8th day of August, 2022.

/s/
MICHAEL SHELLEY
Florida Bar No. 999016
THE SHELLEY LAW FIRM, LLC
Meridian Center
1688 Meridian Avenue, Suite 700
Miami Beach, Florida 33139
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Counsel for Petitioner

/s/
JAMES A. SAVILLE, JR.
New York State Bar No. 2858744
Hill Rivkins LLP
45 Broadway, Suite 1500
New York, New York 10006
Tel: (212) 669-0600
Email: jsaville@hillrivkins.com

Counsel for Respondent

PRIN ID #: 81-068753600

ACCT LOC ID: 100134692

BOND # 2016030102

OMB No. 3072-0018
Expires 03/31/2019

Form FMC-48
Federal Maritime Commission
Ocean Transportation Intermediary (OTI) Bond
 (Section 19, Shipping Act of 1984 (46 U.S.C. 40901-40904))

ALLROUND FORWARDING MIDWEST INC. [a Freight Forwarder], as Principal (hereinafter "Principal"), and **American Alternative Insurance Corporation**, as Surety (hereinafter "Surety") are held and firmly bound unto the United States of America in the sum of \$50,000.00 for the payment of which sum we bind ourselves, our heirs, executors, administrators, successors and assigns, jointly and severally.

Whereas, Principal operates as an OTI in the waterborne foreign commerce of the United States in accordance with the Shipping Act of 1984, 46 U.S.C. 40101- 41309, and, if necessary, has a valid tariff published pursuant to 46 CFR part 515 and 520, and pursuant to section 19 of the Shipping Act (46 U.S.C. 40901-40904), files this bond with the Commission;

Whereas, this bond is written to ensure compliance by the Principal with section 19 of the Shipping Act (46 U.S.C. 40901-40904), and the rules and regulations of the Federal Maritime Commission relating to evidence of financial responsibility for OTIs (46 CFR part 515), this bond shall be available to pay any judgment obtained or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal's transportation-related activities under the Shipping Act, or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301-41302, 41305-41307(a)), or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107-41109).

Now, Therefore, The condition of this obligation is that the penalty amount of this bond shall be available to pay any judgment or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal's transportation-related activities or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301-41302, 41305-41307(a)), or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107-41109).

This bond shall inure to the benefit of any and all persons who have obtained a judgment or a settlement made pursuant to a claim under 46 CFR § 515.23 for damages against the Principal arising from its transportation-related activities or order of reparation issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301-41302, 41305-41307(a)), and to the benefit of the Federal Maritime Commission for any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107-41109). However, the bond shall not apply to shipments of used household goods and personal effects for the account of the Department of Defense or the account of federal civilian executive agencies shipping under the International Household Goods Program administered by the General Services Administration.

The liability of the Surety shall not be discharged by any payment or succession of payments hereunder, unless and until such payment or payments shall aggregate the penalty amount of this bond, and in no event shall the Surety's total obligation hereunder exceed said penalty amount, regardless of the number of claims or claimants.

This bond is effective the 6th day of April, 2016 and shall continue in effect until discharged or terminated as herein provided. The Principal or the Surety may at any time terminate this bond by mail or email (bcl@fmc.gov) written notice to the Director, Bureau of Certification and Licensing, Federal Maritime Commission, Washington, DC 20573. Such termination shall become effective thirty (30) days after receipt of said notice by the Commission. The Surety shall not be liable for any transportation-related activities of the Principal after the expiration of the 30-day period but such termination shall not affect the liability of the Principal and Surety for any event occurring prior to the date when said termination becomes effective.

The Surety consents to be sued directly in respect of any bona fide claim owed by Principal for damages, reparations or penalties arising from the transportation-related activities under the Shipping Act of Principal in the event that such legal liability has not been discharged by the Principal or Surety after a claimant has obtained a final judgment (after appeal, if any) against the Principal from a United States Federal or State Court of competent jurisdiction and has complied with the procedures for collecting on such a judgment pursuant to 46 CFR 515.23, the Federal Maritime Commission, or where all parties and claimants otherwise mutually consent, from a foreign court, or where such claimant has become entitled to payment of a specified sum by virtue of a compromise settlement agreement made with the Principal and/or Surety

pursuant to 46 CFR 515.23, whereby, upon payment of the agreed sum, the Surety is to be fully, irrevocably and unconditionally discharged from all further liability to such claimant; provided, however, that Surety's total obligation hereunder shall not exceed the amount set forth in 46 CFR 515.21; as applicable.

The underwriting Surety will promptly notify the Director, Bureau of Certification and Licensing, Federal Maritime Commission, Washington, DC 20573, in writing by mail or email (bcl@fmc.gov), of all claims made, lawsuits filed, judgments rendered, and payments made against this bond.

Signed and sealed this 4th day of April, 2016.
(Please type name of signer under each signature.)

Individual Principal or Partner

Business Address

Individual Principal or Partner

Business Address

Individual Principal or Partner

Business Address

Trade Name, if any

ALLROUND FORWARDING MIDWEST INC.
Corporate Principal

DE
State of Incorporation

28938 LORAIN ROAD, SUITE 100, NORTH OLMSTED,
OH 44070

Business Address

Trade Name, if any

By Janko Wille

President
Title

(Affix Corporate Seal)

ALLROUND

ALLROUND FORWARDING CO., INC.

ALLROUND FORWARDING MIDWEST INC.

28938 LORAIN ROAD, SUITE 100

NORTH OLMSTED, OH 44070

AMERICAN ALTERNATIVE INSURANCE CORPORATION
(A DELAWARE CORPORATION)
555 COLLEGE ROAD EAST
P.O. BOX 5241
PRINCETON, NJ 08543



Matthew L. Zehner

Matthew L. Zehner
Attorney in Fact

Contact Address Requested by Surety:
Roanoke Insurance Group Inc.
Managing General Underwriters for
American Alternative Insurance Corporation
1475 E Woodfield Road, Suite 500
Schaumburg, IL 60173
Phone: 847-969-1420

PRIN ID #: 81-068753600

ACCT LOC ID: 100134692

BOND # 2016030109

OMB No. 3072-0018
Expires 03/31/2019

Form FMC-48
Federal Maritime Commission
Ocean Transportation Intermediary (OTI) Bond
(Section 19, Shipping Act of 1984 (46 U.S.C. 40901-40904))

ALLROUND FORWARDING MIDWEST INC. [NVOCC], as Principal (hereinafter "Principal"), and **American Alternative Insurance Corporation**, as Surety (hereinafter "Surety") are held and firmly bound unto the United States of America in the sum of \$75,000.00 for the payment of which sum we bind ourselves, our heirs, executors, administrators, successors and assigns, jointly and severally.

Whereas, Principal operates as an OTI in the waterborne foreign commerce of the United States in accordance with the Shipping Act of 1984, 46 U.S.C. 40101– 41309, and, if necessary, has a valid tariff published pursuant to 46 CFR part 515 and 520, and pursuant to section 19 of the Shipping Act (46 U.S.C. 40901–40904), files this bond with the Commission;

Whereas, this bond is written to ensure compliance by the Principal with section 19 of the Shipping Act (46 U.S.C. 40901–40904), and the rules and regulations of the Federal Maritime Commission relating to evidence of financial responsibility for OTIs (46 CFR part 515), this bond shall be available to pay any judgment obtained or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal's transportation-related activities under the Shipping Act, or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301–41302, 41305–41307(a)), or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107–41109).

Now, Therefore, The condition of this obligation is that the penalty amount of this bond shall be available to pay any judgment or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal's transportation-related activities or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301–41302, 41305–41307(a)), or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107–41109).

This bond shall inure to the benefit of any and all persons who have obtained a judgment or a settlement made pursuant to a claim under 46 CFR § 515.23 for damages against the Principal arising from its transportation-related activities or order of reparation issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301–41302, 41305–41307(a)), and to the benefit of the Federal Maritime Commission for any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107–41109). However, the bond shall not apply to shipments of used household goods and personal effects for the account of the Department of Defense or the account of federal civilian executive agencies shipping under the International Household Goods Program administered by the General Services Administration.

The liability of the Surety shall not be discharged by any payment or succession of payments hereunder, unless and until such payment or payments shall aggregate the penalty amount of this bond, and in no event shall the Surety's total obligation hereunder exceed said penalty amount, regardless of the number of claims or claimants.

This bond is effective the 27th day of September, 2016 and shall continue in effect until discharged or terminated as herein provided. The Principal or the Surety may at any time terminate this bond by mail or email (bcl@fmc.gov) written notice to the Director, Bureau of Certification and Licensing, Federal Maritime Commission, Washington, DC 20573. Such termination shall become effective thirty (30) days after receipt of said notice by the Commission. The Surety shall not be liable for any transportation-related activities of the Principal after the expiration of the 30-day period but such termination shall not affect the liability of the Principal and Surety for any event occurring prior to the date when said termination becomes effective.

The Surety consents to be sued directly in respect of any bona fide claim owed by Principal for damages, reparations or penalties arising from the transportation-related activities under the Shipping Act of Principal in the event that such legal liability has not been discharged by the Principal or Surety after a claimant has obtained a final judgment (after appeal, if any) against the Principal from a United States Federal or State Court of competent jurisdiction and has complied with the procedures for collecting on such a judgment pursuant to 46 CFR 515.23, the Federal Maritime Commission, or where all parties and claimants otherwise mutually consent, from a foreign court, or where such claimant has become entitled to payment of a specified sum by virtue of a compromise settlement agreement made with the Principal and/or Surety

pursuant to 46 CFR 515.23, whereby, upon payment of the agreed sum, the Surety is to be fully, irrevocably and unconditionally discharged from all further liability to such claimant; provided, however, that Surety's total obligation hereunder shall not exceed the amount set forth in 46 CFR 515.21, as applicable.

The underwriting Surety will promptly notify the Director, Bureau of Certification and Licensing, Federal Maritime Commission, Washington, DC 20573, in writing by mail or email (bcl@fmc.gov), of all claims made, lawsuits filed, judgments rendered, and payments made against this bond.

Signed and sealed this 23rd day of September, 2016.
(Please type name of signer under each signature.)

Individual Principal or Partner

Business Address

Individual Principal or Partner

Business Address

Individual Principal or Partner

Business Address

Trade Name, if any

ALLROUND FORWARDING MIDWEST INC.
Corporate Principal

Delaware
State of Incorporation

28938 LORAIN RD, SUITE 100,
NORTH OLMSTEAD OH 44070

Business Address

(Affix Corporate Seal)

Trade Name, if any

By

Vice President

Title

AMERICAN ALTERNATIVE INSURANCE CORPORATION

(A DELAWARE CORPORATION)

555 COLLEGE ROAD EAST

P.O. BOX 5241

PRINCETON, NJ 08543



Matthew L. Zehner

Matthew L. Zehner
Attorney in Fact

Contact Address Requested by Surety:

Roanoke Insurance Group Inc.

Managing General Underwriters for

American Alternative Insurance Corporation

1475 E Woodfield Road, Suite 500

Schaumburg, IL 60173

Phone: 847-969-1420